

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF
SRI LANKA

*In the matter of an application for mandates in the
nature of Writs of Certiorari and Prohibition in
terms of Article 140 of the Constitution of the
Democratic Socialist Republic of Sri Lanka.*

CA/WRIT/Application No. 28/2024

1. Kalutota Financial Services (Private) Limited
49, Hudson Road,
Colombo 3.
2. Diyagu Badathuruge Achini Erandi Madushani
51, Nelson Lane,
Colombo 3.
3. Diyagu Badathuruge Isuru Anuranga Sampath
104A, Thambiliwatte,
Kahapola, Madapatha,
Piliyandala.
4. Liyana Yuminda Nalaka Mendis
Wickramasinghe
263, Uthuru Kebillewela,
Gediyaroda,
Bandarawela.

PETITIONERS

Vs.

1. Ilandari Dewage Pathma Kumarasiri
No. 89/1, 'Pudgalika Niwasa'
Hingurana.
2. Parakramasinghe Nishanthi Udayanganee

No. 89/1, 'Pudgalika Niwasa'
Hingurana.

And/or
Priyarangana Hotel,
Hingurana.

3. Deshanbandu Tennekoon
Acting Inspector General of Police
Police Headquarters
Colombo 01.
4. Ajith Rohana
Senior Deputy Inspector General of Police –
Eastern Province,
Office of the Senior Deputy Inspector General of
Police – Eastern Province,
Batticaloa.
5. Manoj Dissanayake
Chief Inspector of Police,
Officer in Charge,
Damana Police Station.
6. Hon. Magistrate,
Magistrates Court,
Ampara.
7. The Registrar,
Magistrates Court,
Ampara.
8. Hon. Attorney General
Attorney General's Department,

Hulftsdorp,
Colombo 12.

RESPONDENTS

Before : **Hon. Rohantha Abeysuriya PC, J.(P/CA)**
: **Hon. K. Priyantha Fernando, J.(CA)**

Counsel : M. Rupasinghe for the Petitioners.

Nisala Seniya Fernando for the 2nd Respondent.

Shanaka Wijesinghe, PC / A.S.G for the 3rd to 8th
Respondents.

Written Submissions on : 09.01.2026 for the 2nd Respondent.
12.01.2026 for the Petitioners.

Argued on : 02.12.2025

Decided on : 22.06.2026

K. Priyantha Fernando, J.(CA)

JUDGMENT

1. The 2nd, 3rd and 4th Petitioners who were employees of the 1st Petitioner Finance Company have been arrested by the officers attached to the Damana Police Station and produced before the Magistrate of Ampara under the case No. B 5038/24 under Sections 102, 433, 434, 440, 140 and 146 of the Penal Code. The learned Magistrate has released all the suspects on bail. Being aggrieved by the arrest, the Petitioners have invoked writ jurisdiction by this application

dated 12th January 2024 seeking the issuance of:

- (1) A writ of ***Certiorari*** quashing the proceedings of the Magistrate's Court of Ampara case bearing B/5038/24;
- (2) A writ of ***Prohibition*** preventing further proceedings being conducted in the Magistrate's Court of Ampara;
- (3) A writ of ***Prohibition*** preventing any one of the 3rd to 5th Respondents from instituting or continuing with any criminal proceedings against the 1st to 4th Petitioners pertaining to the property described in the Deed of Transfer P4. The 1st Petitioner is a duly incorporated vehicle financing company, while the 2nd to 4th Petitioners are its employees, with the 2nd Petitioner acting as the Chief Executive Officer.

FACTUAL MATRIX:

2. The 1st Respondent is the virtual complainant of the Magistrates Court case of Ampara and the 2nd Respondent is the wife of late Sarath Kumarasiri the sister-in-law of the 1st Respondent. She was a customer of the 1st Petitioner Company. The 3rd to 6th Respondents are acting Inspector General, Senior DIG-Eastern Province, OIC of the Damana Police Station and the Hon. Magistrate respectively.
3. The 1st Petitioner Company granted finance leasing facility to the 2nd Respondent by Memorandum of Agreement (P2) dated 25.05.2011 for a sum of Rs. 1,100,000 for the hire purchase of motor vehicle No. EP HG-7472. It was seized by the 1st Petitioner on 12.10.2012 due the 2nd Respondent defaulting of installments. At that point one Sarath Kumarasiri who is the husband of the 2nd Respondent offered to transfer a property owned by him to the 1st Petitioner Company as additional security subject to the returning of the motor vehicle. He transferred the said property to the 1st Petitioner by Deed of Transfer No. 269 dated 30.10.2012 (P4). A further sum of Rs. 1,000,000/- has been advanced to him effect repairs to the vehicle pursuant to the transfer Deed being executed. Subsequently, the vehicle has been again seized due to the non-payment of the lease rentals. After a discussion, Sarath Kumarasiri has agreed to

hand over the possession of the land to the Company subject to the payment of Rs. 4,000,000/- (vide P5). Sarath Kumarasiri died on or around November 2023.

POSITION OF THE PETITIONER:

4. It was Petitioners' position that the possession of the land was handed over to the Company on 15th May 2023 as per the receipt marked as P5. (However, the 2nd respondent is disputing this fact stating she was in possession throughout). After the death of Sarath Kumarasiri in November 2023, upon a request made by the 2nd Respondent, Company has allowed to have the funeral at the said property.
5. It was Petitioners' position that at the start of the year 2024, the 1st Petitioner Company took steps to sell the land and some casual workers hired by the Akkaraipattu branch manager entered the land to clean it. It is Petitioners' position that they never entered the property which the 1st Petitioner Company had legal title; The 2nd to 4th petitioners had visited the property knowing that the 1st Petitioner Company being their employer had title to the same.
6. The Petitioners are challenging the alleged wrongful and unlawful institution of criminal proceedings in the Magistrate's Court of Ampara (Case No. B/5038/24) by the 5th Respondent, the Officer in Charge of the Damana Police Station, based on a complaint by the 1st Respondent. They contended that the 1st Respondent, who is the sister-in-law of the 2nd Respondent, has no legal entitlement or natural heirship to the property in question, making the complaint fundamentally flawed.
7. Furthermore, it was argued that the dispute is civil in nature, stemming from a 2011 finance lease agreement between the 1st Petitioner and the 2nd Respondent for a motor vehicle. Following the 2nd Respondent's default and the subsequent seizure of the vehicle in 2012, the 2nd Respondent's late husband transferred a property to the 1st Petitioner via a Deed of Transfer as additional security. It is averred that after further defaults and a second seizure, the late husband agreed to hand over vacant possession of the property to the 1st Petitioner in May 2023 in exchange for Rs. 4,000,000. Upon the husband's death in November 2023, the 1st Petitioner allowed his funeral to be held on the premises as a gesture of goodwill, but the company lawfully retained possession of the property.

8. The Petitioners contended that the arrests leading to the impugned proceedings were arbitrary, unreasonable, and capricious. The Petitioners stated that on the 8th of January 2024, the 1st Petitioner's branch manager and workers entered the property to clean it for an intended sale, while the 2nd to 4th Petitioners later visited the town to inspect the property and conduct errands.
9. The Petitioners asserted that they were subsequently summoned to the Damana Police Station, where the 5th Respondent arrested the 2nd to 4th Petitioners and other employees without any inquiry, without allowing them to clarify their position, and without considering the 1st Petitioner's lawful title. They were then produced before the Magistrate and charged with offenses including criminal trespass, house-breaking, and unlawful assembly under Sections 102, 433, 434, 440, 140, and 146 of the Penal Code, before being released on stringent surety bail conditions. The 2nd Petitioner subsequently filed a complaint with the National Police Commission regarding the 5th Respondent's conduct.
10. The Petitioners argued that the Magistrate's Court proceedings are entirely devoid of any factual or legal basis. They maintained that because the 1st Petitioner holds lawful right, title, and interest to the property, its employees cannot be prosecuted as trespassers. It was contended that the 1st and 5th Respondents abused the process of law by disguising a civil property dispute as a criminal matter, and that not an iota of credible evidence was presented to justify the Magistrate entertaining the case. They asserted that the lower court acted without jurisdiction, in excess of jurisdiction, in violation of natural justice, with an error of law on the face of the record, and in a *mala fide* manner.

POSITION OF THE 2ND RESPONDENT:

11. The 2nd Respondent contended that the instant application for Writs of *Certiorari* and *Prohibition* must be recognized as an extraordinary, discretionary remedy that courts cannot grant as a matter of course, routine, or right. Citing the authority of Jayaweera v Assistant Commissioner of Agrarian Service, Ratnapura and another (1996) 2 Sri L. R. 70, the Respondent argued that a court retains full discretion to deny relief based on a petitioner's conduct, delay, *laches*, waiver, or submission to jurisdiction. The Respondent stated that the final reliefs sought by the Petitioners, namely, quashing the Ampara Magistrate's Court proceedings bearing Case No. B/5038/24, preventing further proceedings therein, and

restraining the 3rd to 5th Respondents from instituting or continuing any criminal proceedings regarding the property described in the Deed of Transfer marked "P4" are entirely unsustainable because the core material facts of the case are in dispute.

MAJOR FACTS ARE IN DISPUTE:

12. The Respondent explicitly disputed the Petitioners' primary claim of ownership and lawful occupation of the land. The Respondent argued that the Petitioners, along with their employees and agents, have never been in possession or ownership of the said land. Instead, the 2nd Respondent has always maintained continuous possession of the property and never handed it over to the Petitioners. She has substantiated this position by submitting documents marked 2R1 to 2R5, while pointing out that the Petitioners failed to provide an iota of evidence to prove their own possession. The Petitioners' own document, marked P5, directly contradicts their claims by stating that possession would only be handed over to Kalutota Financial Services (Pvt.) Ltd three months after its execution date.
13. Furthermore, the Respondent disputed the Petitioners' characterization of the property transfer under the Deed of Gift bearing number 269 dated 30.10.2012; while the Petitioners claimed it was an outright transfer, the Respondent consistently contended that the transaction was merely a mortgage.
14. It is trite law that whenever material facts are in dispute, the writ jurisdiction of the Court of Appeal under Articles 140 and 141 of the Constitution will not apply. The same is evident through the judicial dicta in Thajudeen v Sri Lanka Tea Board and Another 1981) 2 Sri L. R. 471, Dr K. Puvanendran and Another v T.M. Premasiri and Two Others (2009) 2 Sri L. R. 107, Wijenayake and Others v Minister of Public Administration (2011) 2 Sri L. R. 247, and Liyana Atukoralalage Done Thanuja Darshini v Ceylon Electricity Board SC/APPEAL/11/2024 decided on 08.05.2024.
15. It was revealed that the Petitioners had raised identical contentions regarding possession in a connected application, bearing number CA/WRT/113/2024, where they sought to restrain the Debt Conciliation Board from determining whether the transaction was an outright transfer or a

mortgage. By the judgment dated 28.01.2025, the Court of Appeal dismissed that application because the question of who was in possession of the disputed property was a matter of dispute, meaning a writ could not be issued.

16. The Respondents further contended that the Petitioners are improperly seeking a broad and vague blanket immunity, which is a constitutional privilege afforded only to the President of Sri Lanka. They argued that the Petitioners are attempting to stop the wheels of justice and prevent an ongoing investigation by asking the Court to halt all criminal proceedings; the Petitioners failed to stipulate any unlawful act committed by the learned Magistrate under the Code of Criminal Procedure, noting that the **Petitioners can freely endeavor to prove their defense regarding possession before the Magistrate.**

17. Relying on the legal principles established in Sipkaduwa Anthony Wimalasuriya v Commissioner General of Lands CA/WRIT/47/2014 decided on 29.07.2018, Siriwardena v Provincial Council Public Service Commission CA/WRT/763/2008 decided on 23.05.2011, Christine De Silva v Urban Development Authority 278/2018 decided on 26.10.2021, and K. Gunapalan v Minister of Rural Economic Affairs decided on 25.09.2020, the Respondent maintained that it is important in a writ petition to correctly and specifically plead the exact relief sought with certainty, and that applications filed with uncertain, broad, or vague prayers against an array of officials must be dismissed *in limine*.

AVAILABILITY OF ALTERNATIVE REMEDY:

18. Furthermore, it was asserted that the availability of an alternate, equally effective, and proper statutory remedy disentitles the Petitioners to discretionary writ relief. Citing the judgment of Wickremasinghage Francis Kulasooriya v Officer in Charge, Police Station Kirindiwela SC/Appeal/52/2021 decided on 14.07.2023. When a statute provides an effective remedy capable of preventing injustice, a dissatisfied party must pursue that avenue rather than invoking writ jurisdiction, or otherwise offer an explanation as to why it was not resorted to. It is seen that the Petitioners can fully prove their position regarding the lack of criminal trespass before the learned Magistrate, making it an entirely proper and efficacious remedy.

19. Finally, the Respondent raised a preliminary objection, stating that the Petitioners blatantly and consistently failed to comply with the mandatory provisions of Rule 3(1)(a) of the Court of Appeal (Appellate Procedure) Rules 1990. The Respondent argued that the rule strictly requires applications to be accompanied by the originals or "duly certified copies" of material documents, yet the Petitioners only submitted "true copies" and failed to offer any explanation for their inability to tender certified copies. The Respondent contended that compliance with this rule is imperative and mandatory, and cited the judgments delivered in the cases of Jayantha Perera Bogodage v Controller of Imports and Exports CA/WRT/345/2012 dated 12.12.2018, Attorney General v Ranjith Weera Wickreme Charles Jayasinghe CA/PHC/APN/74/2016 decided on 09.10.2017, and Shanmugavadivu v Kulathilake (2003) 1 Sri L. R. 215.

CONCLUSION:

20. In this case, the major fact of which party had the possession of the subject land is seriously disputed. Whether 2nd to 4th petitioners have illegally entered the land or not has to be considered after leading evidence in a trial court. The primary contention of the Petitioners is that they were in lawful occupation of the property but were arrested by the Police, notwithstanding the fact they were not trespassing on the land. This fact is disputed by the 2nd Respondent who has maintained the position that the Petitioners have never been in possession or are the owners of the land. The documents 2R1 to 2R5 shows that the 2nd Respondent has been in possession whereas the petitioners have failed to produce an iota of evidence to prove their possession. Even the document P5 only states that “*the possession will be handed over to Kalutota Finance Services (Pvt) Ltd after three months from the date hereof*”.
21. Moreover, having stated that the land offered to be transferred as an additional security subject to the Petitioners returning the motor vehicle (paragraph 4d of the petition), the other contention of the Petitioners is that the transfer made by the Deed of Gift bearing No. 269 dated 30.10.2012 is an outright transfer. This fact also is disputed by the 2nd Respondent who has consistently taken the stance that there was no outright transfer but mortgage.
22. It is trite law that whenever material facts are in dispute, the writ jurisdiction of the Court of Appeal under Article 140 and 141 of the Constitution will not apply. This has been the

consistent principle as evinced by the following case law: *Thajudeen v Sri Lanka Tea Board and Another* (1981) 2 Sri L. R. 471.

23. **It is important to note** that the proceedings of the Magistrates Court case have been stayed for 2 years and 6 months for no fault of the 2nd Respondent who is continued to be in the possession of the land. If the proceedings were not stayed, the issue of possession and whether criminal trespass was committed by the 2nd to 4th Petitioners would have been finally decided by now.
24. The Petitioners have come before this Court to quash the proceedings of the Magistrates Court case and to prohibit the Respondents from instituting further proceedings being conducted in the Magistrates Court. The best and most efficacious remedy lies within the Magistrates Court. The alternative remedy is available for the Petitioners to prove their possession and this Court should not quash the said remedy being selected by the 3rd to 6th Respondents. Writs do not lie when alternative remedy is available as well as when major facts are in dispute.
25. For the foregoing reasons, the application of the Petitioners is dismissed with costs.

Judge of the Court of Appeal

Hon. Rohantha Abeyesuriya PC, J.(P/CA)

I agree.

President of the Court of Appeal